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IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

IN AND FOR THE COUNTY OF MARICOPA

John CD Doe, a single man, Plaintiff, vs. Big Brothers Big Sisters of America, a District of Columbia, non-profit corporation; Big Brothers Big Sisters of Central Arizona, an Arizona corporation; John Doe 1-100; Jane Doe 1-100; and Black & White Corporations 1-100, Defendants.	Case No. CV2020-014920 **RESPONSE TO MOTION TO AMEND COMPLAINT IN THE NAME OF THE REAL PARTY IN INTEREST** (Assigned to the Hon. Christopher Whitten)

Defendant Big Brothers Big Sisters of America ("BBBSA"), by and through undersigned counsel, files its Response to John CD Doe's Motion to Amend Complaint in the Name of the Real Party in Interest ("BBBSA's Response"). BBBSA respectfully requests that the Court deny John CD Doe's Motion to Amend Complaint (the "Motion") on the basis that it is void and/or that it fails to comply with Ariz.R.Civ.P. 15(a)(4). In the event the Court finds that the Motion should not be denied on those grounds, then BBBSA requests that the Motion be granted **only** as to those amendments that reflect the trustee and real party in interest's substitution as Plaintiff and that correct the party names that change as a result of the trustee's involvement, and that it be denied in all other respects.

BBBSA's Response is supported by the following Memorandum of Points and

Authorities.

MEMORANDUM OF POINTS AND AUTHORITIES

I. RELEVANT PROCEDURAL BACKGROUND

John CD Doe's original Complaint was filed on November 18, 2020 and alleged claims against Defendants BBBSA and Big Brothers Big Sisters of Central Arizona ("BBBSCAZ") (collectively "Defendants"), arising out of his allegations of sexual abuse by Italo Arbulu ("Arbulu"). (*See* Original Complaint, generally). John CD Doe subsequently filed his First Amended Complaint on June 29, 2021, wherein he asserts the following causes of action against BBBSA: (1) Count One—violation of A.R.S. § 13-3623; (2) Count Two—negligence; (3) Count Three—negligent training and supervision; (4) Count Four—negligent retention of employees; (5) Count Five—breach of fiduciary duty; (6) Count Six—intentional infliction of emotional distress; (7) Count Seven—endangerment; (8) Count Eight—child abuse; and (9) Count Nine—assault pursuant to A.R.S. §§ 13-1203 and 13-1204. (*See* First Amended Complaint, generally).

On December 26, 2024, BBBSCAZ filed a Motion for Summary Judgment seeking to dismiss John CD Doe's lawsuit on the basis that John CD Doe does not have standing to bring this lawsuit because he filed for bankruptcy in 2009 and 2017 and failed to schedule or disclose the claims he asserts against Defendants in this lawsuit. (*See* BBBSCAZ's Motion for Summary Judgment, generally). On January 30, 2025, John CD Doe filed his Motion To Re-Open Bankruptcies And Debtor's Motion For An Order To Stay Underlying Tort Claim (the "Motion to Re-open") in the Bankruptcy Court. In the Motion to Re-open, John CD Doe requested that the Bankruptcy Court re-open both the 2009 and the 2017 Bankruptcy Cases so that the causes of action in this lawsuit can be administered as part of his bankruptcy estate. John CD Doe also requested that the Bankruptcy Court order a stay of this litigation. In response, BBBSCAZ filed an objection to John CD Doe's request for a stay, arguing that under federal law, an automatic stay does not "arise anew" when a bankruptcy case is re-opened. On February 21, 2025, the United States Bankruptcy Court for the District of Arizona reopened John CD Doe's 2009 and 2017 bankruptcies and set a hearing for March

25, 2025 on the issue of whether an automatic stay is in effect, or should be ordered to be in effect. (*See* Motion at p. 3). Maureen Gaughan ("Trustee Gaughan") has been appointed trustee for the bankruptcy estates. (*Id.*).

On February 28, 2025, this Court entered a Notice of Bankruptcy, entering a Stay Order in this case and placing the case on the Dismissal Calendar for dismissal on August 26, 2025. This Stay Order remains in effect.

Notwithstanding that this case has been stayed, John CD Doe seeks leave to file a Second Amended Complaint to list Trustee Gaughan as the real party in interest and to "reflect her substitution into the action." (*See* Motion at p. 3).[1] John CD Doe's Motion does not seek the lifting of the stay that has been entered, nor does it seek permission from the Court to add **any** additional facts or allegations. However, the proposed Second Amended Complaint attached to John CD Doe's Motion contains numerous new factual allegations that are neither relevant to Trustee Gaughan's substitution into this action nor addressed in the Motion.

II. LEGAL ARGUMENT

A. John CD Doe's Motion is void.

The filing of a voluntary petition for bankruptcy operates as a stay of the continuation of a judicial action against the debtor. *See* 11 U.S.C. § 362(a)(1). Arizona courts have held that the stay applies even in proceedings where "the debtor initiated the proceeding and was the plaintiff." *Tucson Elec. Power Co. v. Apache Cnty.*, 185 Ariz. 5, 19–20, 912 P.2d 9, 23–24 (Ct. App. 1995), *citing In re Bloom*, 875 F.2d 224, 226 (9th Cir.1989) (holding that a motion by a creditor to strike a pre-bankruptcy action violates the automatic stay even though the debtor initiated the proceeding and was the plaintiff). "Actions which violate the stay are void." *Miller v. Nat'l Franchise Servs., Inc.*, 167 Ariz. 403, 407, 807 P.2d 1139, 1143 (Ct. App. 1991), *citing* 2 *Collier on Bankruptcy* § 362.03, p. 362–31 (15th ed. 1979). John

[1] In his Motion, John CD Doe falsely alleges that "On November 1, 1982, *Defendants* evaluated Arbulu" and that "*Defendants* paired Italo Arbulu with Plaintiff John CD Doe in January 1983." (*See* Motion at pp. 2 and 3) (emphasis added). In fact, BBBSA had no involvement in evaluating Arbulo or pairing Arbulo with John CD Doe.

CD Doe filed his Motion **after** the Bankruptcy Court had reopened his 2009 and 2017 bankruptcies and **before** the Bankruptcy Court's hearing on the issue of whether an automatic stay is in effect, or should be ordered to be in effect. Therefore, John CD Doe's Motion is void pending the Bankruptcy Court's decision regarding a stay.

Furthermore, **even if** the Bankruptcy Court finds that an automatic stay is not in effect, John CD Doe's Motion is void as it was filed while a Stay Order was in effect in this Court. Pursuant to this Court's Notice of Bankruptcy, the Stay Order is in effect until "Plaintiff demonstrates they have moved to lift the stay but the request has not been ruled upon or has been denied; or they have sought to reduce the claim(s) against the debtor to judgment in the Bankruptcy Court in an adversary proceeding and the adversary proceeding has not yet been resolved despite diligence in seeking such a resolution; or they have obtained severance of the claim(s) against the debtor from the claim(s) against the other parties to the action, if any; or they have demonstrated a reasonable basis for continuance of the case on the Dismissal Calendar." (*See* Notice of Bankruptcy). John CD Doe has not demonstrated **any** grounds for lifting the Stay Order. Therefore, John CD Doe's Motion is void and should be denied on that ground.

B. John CD Doe's Motion fails to comply with Ariz.R.Civ.P. 15(a)(4).

Rule 15(a)(4) requires a party seeking to amend a pleading to file a motion and to attach, as an exhibit thereto, "a copy of the proposed amended pleading," which "must show the respects in which the proposed pleading differs from the existing pleading by bracketing or striking through the text to be deleted and underlining the text to be added." John CD Doe's proposed Second Amended Complaint, which is attached to his Motion, does not comply with Ariz.R.Civ.P. 15(a)(4). Throughout the proposed Second Amended Complaint, John CD Doe makes changes that are not redlined as required by Ariz.R.Civ.P. 15(a)(4). (*See* proposed Second Amended Complaint at ¶¶ 13, 15, 16, 40, 43, 44, 46, 49, 52, 53, 54, 56, 57, 60, 61, 62, 63, 64, 67, 68, 70, 71, 72, 73, 76, 81, 88, 89, 90, 94, 96, 98, 99, 100, 103,

107, 108, 109, 110, 112, 113, 114, 117, 119, 120, 121, 122, 124).[2] Some of the changes include facts that have been moved to other paragraphs without any redlining to identify the proposed changes. (*See Id*. at ¶¶ 40 and 43; *see also* First Amended Complaint at ¶ 33). Furthermore, none of the 124 numbered paragraphs in the Second Amended Complaint are redlined to reflect that the paragraph number has changed. (*See* proposed Second Amended Complaint, generally). In addition, not all references to "Plaintiff" and "John CD Doe" are amended to accurately reflect Trustee Gaughan's substitution as Plaintiff. (*See Id*. at ¶ 11).

John CD Doe's failure to comply with Ariz.R.Civ.P. 15(a)(4) is alone a sufficient basis to deny his Motion. *See Carranza v. Madrigal*, 237 Ariz. 512, 354 P.3d 389, 392 (2015) (discussing that plaintiff's failure to comply with Ariz.R.Civ.P. 15(a)(4) constituted a "sufficient basis for the trial court to deny" his motion to amend).

C. <u>John CD Doe's Motion fails in part based on failure to seek leave of court and undue delay.</u>

A plaintiff may amend his complaint "once as a matter of course," and any subsequent amendment requires "leave of court or … the written consent of all opposing parties who have appeared in the action." *See* Ariz.R.Civ.P. 15(a)(1)-(2). Although "[l]eave to amend must be freely given when justice requires," Ariz.R.Civ.P. 15(a)(2), a "court may deny leave to amend if it finds undue delay, bad faith, dilatory motive, repeated failure to cure deficiencies by previous amendments or undue prejudice to the opposing party." *Carranza*, 237 Ariz. at 512, 354 P.3d at 392, citing *Owen v. Superior Court,* 133 Ariz. 75, 79, 649 P.2d 278, 282 (1982) (internal citations omitted).

In his Motion, John CD Doe only addresses whether he meets the standard for amendment as to the allegations relating to Trustee Gaughan. Specifically, he states that Ariz.R.Civ.P. 17 "requires the trial court to grant Plaintiff's Motion to Amend the Complaint to include the name of the real party in interest" and that Rule 17(b)(3) "prohibits the trial

[2] Thus, undersigned counsel had to spend a significant amount of time comparing the proposed Second Amended Complaint with the First Amended Complaint to identify the differences.

court from dismissing this lawsuit for failure to prosecute in the name of the real party in interest, until, after an objection, a reasonable time has been allowed for the real party in interest to ratify, join or be substituted into the action." (*See* Motion at p. 3) (internal citations omitted). BBBSA does not oppose John CD Doe's Motion to the extent it seeks to add allegations relating to Trustee Gaughan's involvement. (*See* proposed Second Amended Complaint at ¶¶ 1, 2, 9, 36, 40, 43, 65, 66). However, BBBSA opposes **all** other redlined and non-redlined amendments contained in the proposed Second Amended Complaint on two grounds: (1) John CD Doe does not seek permission from the Court to add **any** additional facts or allegations, and (2) undue delay. (*See Id*. at ¶¶ 26, 27, 28, 29, 37, 38, 39, 41, 42, 47, 48, 72).

In his Motion, John CD Doe does not assert **any** legal basis to support being permitted to add allegations regarding BBBSA's involvement in setting BBBSCAZ's "[s]tandards for the practice and operation of a Big Brothers and/or Big Sisters Agency" and BBBSA's role in overseeing BBBSCAZ to ensure its operation in conformance to "the requirements of the BB/BBA [s]tandards, rules and regulation." (*See Id*. at ¶¶ 26-29) (internal citations omitted). Therefore, his Motion fails as to all new factual allegations that are unrelated to Trustee Gaughan's substitution as Plaintiff and/or the party names that change as a result of her involvement.

Furthermore, the Court should deny John CD Doe's effort to sneak into the Second Amended Complaint new factual allegations not addressed in his Motion based on undue delay. "Denial of a motion to amend is not an abuse of discretion where there has been undue delay in seeking the amendment." *Gulf Homes, Inc. v. Goubeaux*, 136 Ariz. 33, 38, 664 P.2d 183, 188 (1983) (upholding the trial court's denial of a party's motion for leave to amend his complaint where the party "waited eight months before seeking to amend his complaint to introduce a new theory of recovery"); *see Matter of Torstenson's Est.,* 125 Ariz. 373, 377, 609 P.2d 1073, 1077 (Ct. App. 1980) (holding superior court did not abuse its discretion in denying motion to amend because "[n]othing in the record indicates any compelling reason for the delay" where the moving party had notice of the defects in their

petition almost two years before they filed their motion for leave to amend); *see Bishop v. State, Dep't of Corr.*, 172 Ariz. 472, 475, 837 P.2d 1207, 1210 (Ct. App. 1992) (upholding the trial court's denial of the plaintiff's motion to amend her complaint when the motion to amend was filed "more than two years after filing her original complaint and only a few months before the date set for trial."). Here, the factual allegations John CD Doe seeks to add in the Second Amended Complaint are based on documents that were produced with Defendants' Initial Disclosure Statements back in October 20, 2023. However, John CD Doe does not provide **any** justification for the delay in amending. Therefore, if his Motion is not denied for the reasons set forth in Sections II(A) and/or (B) above, then it should be granted **only** with respect to those amendments that reflect Trustee Gaughan's substitution as Plaintiff and that correct the party names that change as a result of her involvement, and denied in all other respects.

III. CONCLUSION

For the reasons set forth herein, BBBSA respectfully requests the Court deny John CD Doe's Motion on the basis that it is void and/or that it fails to comply with Ariz.R.Civ.P. 15(a)(4). In the event the Court finds that the Motion should not be denied on those grounds, then BBBSA requests: (1) that the Motion be granted **only** as to those amendments that reflect the trustee and real party in interest's substitution as Plaintiff and that correct the party names that change as a result of her involvement; (2) that it be denied in all other respects; and (3) that this Court require John CD Doe to prepare a new proposed Second Amended Complaint that complies with the Court's Order on the Motion and that fully complies with Ariz.R.Civ.P. 15(a)(4).

DATED this 26th day of March, 2025.

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The foregoing document was e-filed this 26th day of March 2025, and a copy e-served via AZTurboCourt and e-mailed to:

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